

Governance Constitution

The structure of government, the laws of the First Nation, and the limits on power

Draft for approval by the Electors | September 30, 2026

Status	Draft for approval by the Electors in a Fundamental Vote.
Authority	The inherent right of self-government; Treaty No. 8; section 35 of the Constitution Act, 1982; the custom of the First Nation under the definition of "council of the band", paragraph (d), in subsection 2(1) of the Indian Act.
Comes into force	On the day after the Electoral Officer certifies its approval under section 17.2.
Legal review	To be reviewed by legal counsel before the vote.

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GOVERNANCE CONSTITUTION OF THE FORT McMURRAY No. 468 FIRST NATION

WHEREAS the Fort McMurray No. 468 First Nation has the inherent right to govern its own affairs, which is an Aboriginal and Treaty right recognized and affirmed by section 35 of the *Constitution Act, 1982*; and

WHEREAS the Fort McMurray No. 468 First Nation adhered to Treaty No. 8, and nothing in this Constitution amends, abrogates, or derogates from any right under Treaty No. 8 or any other Aboriginal or Treaty right; and

WHEREAS the council of the First Nation is chosen according to the custom of the First Nation within the meaning of paragraph (d) of the definition of "council of the band" in subsection 2(1) of the *Indian Act*; and

WHEREAS subsection 2(3) of the *Indian Act* provides that a power conferred on a band is exercised with the consent of a majority of the electors of the band, and a power conferred on the council of a band is exercised with the consent of a majority of the councillors present at a meeting of the council duly convened; and

WHEREAS the Electors wish to set out in one document the structure of the government of the First Nation, the laws through which it acts, the rights of Members, and the limits on the powers of those who hold office;

NOW THEREFORE the Electors of the Fort McMurray No. 468 First Nation adopt this Constitution:

Part 1 Authority and Interpretation

1 Citation and Authority

- 1.1 This Constitution may be cited as the *Governance Constitution of the Fort McMurray No. 468 First Nation*.
- 1.2 This Constitution is the supreme law of the First Nation. Every other law, by-law, Resolution, policy, and decision of the First Nation shall be consistent with it.
- 1.3 This Constitution operates within the laws of Canada that apply to the First Nation. Nothing in it authorizes any act that is contrary to the *Indian Act*, the *Criminal Code*, or any other Act of Parliament that applies to the First Nation.
- 1.4 If the Minister declares under subsection 74(1) of the *Indian Act* that the council of the First Nation is to be selected under that Act, or if the First Nation is named in the schedule to the *First Nations Elections Act*, the provisions of this Constitution and the Election Regulations concerning the selection and term of Council have no effect to the extent they are inconsistent with that Act.

2 Definitions

- 2.1 In this Constitution and in every Document, unless the Document provides otherwise:
- (a) "Appeals Panel" means the panel established by the Appeals and Complaints Code;
 - (b) "Band Manager" means the senior employee of the First Nation responsible for its administration, however titled;
 - (c) "Chief" means the person elected to the office of Chief under the Election Regulations;
 - (d) "Council" means the Chief and the Councillors in office;
 - (e) "Councillor" means a person elected to the office of Councillor under the Election Regulations;
 - (f) "Document" means this Constitution and each law, code, by-law, and agreement listed in Schedule A;
 - (g) "Election Regulations" means the Customary Election Regulations of the First Nation in force from time to time;
 - (h) "Elector" means a Member who is at least eighteen (18) years of age and is not disqualified from voting under the Election Regulations, consistent with the definition of "elector" in subsection 2(1) of the *Indian Act*;
 - (i) "Electoral Officer" means the Electoral Officer appointed under the Election Regulations;
 - (j) "First Nation" means the Fort McMurray No. 468 First Nation;
 - (k) "First Nation Business Entity" means a corporation, partnership, trust, or other entity owned or controlled, in whole or in part, directly or indirectly, by the First Nation;
 - (l) "Fundamental Vote" means a vote of the Electors in which a majority of the votes cast are in favour and a majority of the Electors on the List of Electors cast a ballot;
 - (m) "Immediate Family" means a person's Spouse, child, stepchild, parent, step-parent, guardian, sibling, grandchild, or grandparent, the Spouse of any of them, and any other person who lives with that person as a member of that person's family; "child" includes a legally adopted child and a child adopted in accordance with Indigenous custom;
 - (n) "Integrity Commissioner" means the Integrity Commissioner appointed under the Conduct and Conflict of Interest Code;
 - (o) "Member" means a person whose name appears on the Membership List of the First Nation, or who is entitled to have it appear there, whether the person lives on or off the Reserves;
 - (p) "Ratification Vote" means a vote of the Electors in which a majority of the votes cast are in favour and at least twenty-five percent (25%) of the Electors on the List of Electors cast a ballot;
 - (q) "Records Officer" means the employee designated under the Access to Information and Privacy Code to keep the public record of the First Nation;
 - (r) "Reserve" means a reserve of the First Nation;
 - (s) "Resolution" means a decision of Council made at a duly convened meeting of Council at which a quorum is present, and recorded in a written Band Council Resolution; and
 - (t) "Spouse" means a person to whom another person is legally married, or with whom that person has lived in a conjugal relationship for a continuous period of at least one (1) year, consistent with the definition of "common-law partner" in subsection 2(1) of the *Indian Act*.
- 2.2 A term defined in this Constitution has the same meaning in every Document unless the Document defines it differently for its own purposes.

3 Equality

- 3.1 Every Member is equal before and under the laws of the First Nation and has the right to the equal protection and equal benefit of those laws without discrimination, including discrimination based on place of residence on or off the Reserves, sex, age, disability, family relationship to an office holder, or political opinion.
- 3.2 Section 3.1 does not prevent a program whose purpose is to improve the conditions of Members who are disadvantaged, if its eligibility rules are written, published, and applied equally.

Part 2

Principles of Government

4 Principles

- 4.1 The government of the First Nation shall be carried out in accordance with the following principles:
- (a) authority is held in trust for all Members, on and off the Reserves;
 - (b) no person acts above the laws of the First Nation;
 - (c) no single person may spend public money, award a benefit, hire, or change a law alone;
 - (d) decisions are made in public, by recorded vote, at duly convened meetings;
 - (e) the people who decide, the people who carry out decisions, and the people who review decisions are different people;
 - (f) Members have a right to information about how they are governed and how the money of the First Nation is received and spent; and
 - (g) the Electors, and not Council alone, decide changes to the structure of government.

Part 3

The Electors

5 Powers Reserved to the Electors

- 5.1 The following powers are reserved to the Electors and may be exercised only by a vote of the Electors as provided in the Document concerned:
- (a) adopting or amending this Constitution and the Members' Bill of Rights, by Fundamental Vote;
 - (b) adopting or amending the Election Regulations, by the procedure set out in the Election Regulations;
 - (c) adopting or amending the Membership Code, by the procedure set out in that Code and section 10 of the *Indian Act*;
 - (d) adopting, ratifying, or amending any other Document, or any provision of a Document that the Document identifies as requiring a vote of the Electors, by Ratification Vote;
 - (e) approving the commitments, borrowing, disposals, and investments that the Financial Administration Code reserves to the Electors;
 - (f) approving the schedule of remuneration of members of Council;
 - (g) electing the members of Council and the bodies that the Documents provide are elected; and
 - (h) confirming appointments that the Documents provide are subject to confirmation by the Electors.
- 5.2 Votes of the Electors are conducted by the Electoral Officer under the Community Votes and Petitions Code or the Election Regulations, by secret ballot, with mail-in voting available to every Elector.

6 Initiative of the Electors

- 6.1 Electors may initiate a vote, require a Special Meeting of Electors, or propose an amendment to a Document by petition, as provided in the Community Votes and Petitions Code and the Election Regulations.

Part 4 Council

7 Composition and Term

- 7.1 The composition of Council, the portfolios of Councillors, the term of office, the dates of General Elections, and the removal of members of Council are set by the Election Regulations. Council may not change any of them by Resolution.
- 7.2 No person other than a person elected under the Election Regulations may hold the office of Chief or Councillor or vote as a member of Council.

8 Powers and Limits of Council

- 8.1 Council governs the First Nation between elections and exercises the powers of the council of the band under the *Indian Act* and the laws of the First Nation.
- 8.2 Council exercises its powers only by Resolution at a duly convened meeting, in accordance with subsection 2(3) of the *Indian Act* and the Council Procedure By-law. A decision made by telephone, text message, email, or by collecting signatures outside a meeting is not a decision of Council, and any payment, hiring, or allocation made on such a basis is unauthorized.
- 8.3 No member of Council shall move, second, debate, or vote on any matter that sets or pays the member's own remuneration, honorarium, travel, or expenses, or concerns a contract, loan, benefit, job, or house for the member or the member's Immediate Family. A vote cast in breach of this section is void, and a Resolution that would not have passed without it is void.
- 8.4 No individual member of Council has authority to direct an employee, approve spending, or bind the First Nation, except as Council directs by Resolution.
- 8.5 Council shall not suspend any Document, or any provision of a Document, by Resolution.

9 Matters Outside the Powers of Council Alone

- 9.1 Council shall not:
- (a) surrender or designate any part of a Reserve except by the process in section 38 of the *Indian Act*, including the vote of the Electors that the *Indian Act* requires;
 - (b) make a by-law respecting intoxicants except under section 85.1 of the *Indian Act*, after the assent of the Electors required by subsection 85.1(2);
 - (c) make a by-law under section 81 of the *Indian Act* that is inconsistent with that Act or its regulations, or that provides a penalty greater than the penalty permitted by paragraph 81(1)(r);
 - (d) make a money by-law under section 83 of the *Indian Act* without the approval of the Minister required by that section; or
 - (e) allot possession of reserve land to any person except under section 20 of the *Indian Act*.

Part 5

Independent Offices and Bodies

10 Independent Offices

- 10.1 The following offices and bodies are established by the Documents named, and are independent of Council in carrying out their functions:
- (a) the Electoral Officer and the Election Appeal Tribunal, under the Election Regulations;
 - (b) the Integrity Commissioner, under the Conduct and Conflict of Interest Code;
 - (c) the Appeals Panel, under the Appeals and Complaints Code;
 - (d) the Finance and Audit Committee, under the Financial Administration Code;
 - (e) the Housing Allocation Committee, under the Housing Code;
 - (f) the Elders Membership Committee and the Membership Appeals Officer, under the Membership Code; and
 - (g) the auditor of the First Nation, under the Financial Administration Code.
- 10.2 Council shall not direct, dismiss, or reduce the remuneration of any office or body listed in section 10.1 during its term, except as the Document establishing it provides. A Resolution that purports to do so is void.
- 10.3 Council shall provide each office and body with the budget, records, and access reasonably required to carry out its functions, as set out in the Document establishing it.
- 10.4 A decision of an office or body listed in section 10.1 stands unless it is set aside under the Document establishing it or by a court. Council shall not overturn it.

11 Administration

- 11.1 The administration of the First Nation is carried out by employees under the direction of the Band Manager, who reports to Council as a whole, in accordance with the Administration and Personnel Code.
- 11.2 Employees serve the First Nation and all Members impartially, and are not subject to direction by any individual member of Council.

Part 6

Laws of the First Nation

12 Kinds of Laws and Order of Precedence

- 12.1 The laws of the First Nation are, in order of precedence:
- (a) this Constitution and the Members' Bill of Rights;
 - (b) the Election Regulations and the Membership Code;
 - (c) the other codes and by-laws listed in Schedule A;
 - (d) other by-laws made under the *Indian Act*;
 - (e) Resolutions; and
 - (f) policies and procedures.
- 12.2 Where two laws conflict, the law higher in the order in section 12.1 prevails to the extent of the conflict.

13 Making and Publishing Laws

- 13.1 Every Document and by-law shall be published on the website of the First Nation, and every by-law made under the *Indian Act* shall also be published as required by section 86 of that Act.
- 13.2 The Records Officer shall keep a public register of every law of the First Nation in force, with the date it was made, the date it came into force, and every amendment.
- 13.3 A copy of any law of the First Nation shall be provided free of charge to any Member who requests it, and a copy of any by-law shall be provided to any person who requests it, as subsection 86(2) of the *Indian Act* requires.

14 Protected Documents

- 14.1 The following Documents are protected, and may not be suspended by Council or amended except by a vote of the Electors: this Constitution; the Members' Bill of Rights; the Election Regulations; the Conduct and Conflict of Interest Code; the Membership Code; the Financial Administration Code; the Spending and Contracts Code; the Access to Information and Privacy Code; the Whistleblower Protection Code; the Appeals and Complaints Code; and the Community Votes and Petitions Code.
- 14.2 A protected Document may permit Council to make, by Resolution, an amendment that only adds to the duties of persons who hold office or employment with the First Nation, or to the rights of Members.
- 14.3 A Document not listed in section 14.1 may be amended in the manner it provides.

Part 7

Amendment, Review, and Coming into Force

15 Amendment

- 15.1 This Constitution may be amended only by Fundamental Vote.
- 15.2 An amendment may be proposed by Resolution of Council or by petition of at least ten percent (10%) of the Electors under the Community Votes and Petitions Code.
- 15.3 The Electoral Officer shall publish the full text of a proposed amendment at least forty-five (45) days before the vote, shall mail or email it to every Elector whose address is known, and shall publish the result within three (3) days after the vote.
- 15.4 A Resolution that purports to amend this Constitution is void.

16 Review

- 16.1 Every four (4) years after this Constitution comes into force, the Appeals Panel shall review the operation of this Constitution and the Members' Bill of Rights and publish a written report within sixty (60) days.
- 16.2 Within ninety (90) days after the report is published, Council shall either put any amendment recommended in the report to the Electors or publish written reasons for not doing so.

17 Adoption and Coming into Force

- 17.1 This Constitution is adopted by Fundamental Vote conducted by an independent electoral officer, by secret ballot at polling stations and by mail-in ballot, after at least forty-five (45) days' published and mailed notice with the full text attached.
- 17.2 This Constitution comes into force on the day after the electoral officer certifies in writing that it has been approved under section 17.1.
- 17.3 This Constitution does not repeal any law in force when it comes into force. Where a law in force provides its own procedure for amendment or replacement, that law is amended or replaced only when that procedure has also been followed.
- 17.4 Where a Document refers to an office or body that has not yet been established, the function shall be performed, until it is established, as provided in that Document or, if the Document does not provide, by a retired judge or lawyer who is not a Member and is selected by Council by Resolution.
- 17.5 The Records Officer shall keep this Constitution published on the website of the First Nation while it is in force.

Schedule A Documents

A1.1 The Documents of the First Nation are:

- (a) Document 01, Candidate Commitment Agreement;
- (b) Document 02, Oath of Office;
- (c) Document 03, Governance Constitution;
- (d) Document 04, Members' Bill of Rights;
- (e) Document 05, Customary Election Regulations, 2026;
- (f) Document 06, Council Procedure By-law, 2026;
- (g) Document 07, Conduct and Conflict of Interest Code, 2026;
- (h) Document 08, Membership Code, 2026;
- (i) Document 09, Financial Administration Code, 2026;
- (j) Document 10, Spending and Contracts Code, 2026;
- (k) Document 11, Housing Code, 2026;
- (l) Document 12, Education Support Code, 2026;
- (m) Document 13, Business Ventures and Member Loans Code, 2026;
- (n) Document 14, Access to Information and Privacy Code, 2026;
- (o) Document 15, Whistleblower Protection Code, 2026;
- (p) Document 16, Appeals and Complaints Code, 2026;
- (q) Document 17, Community Votes and Petitions Code, 2026;
- (r) Document 18, Administration and Personnel Code, 2026; and
- (s) Document 19, Candidate Accountability Pledge.

A1.2 Document 20, Amendment and Adoption Procedures, is a guide and is not a law of the First Nation.

Certificate of approval

Date of the vote

Electors on the List of Electors / ballots
cast / votes in favour

Signature of the electoral officer

Explanatory Notes

1. Purpose

This Constitution sets out the structure of government, the order of the laws of the First Nation, the powers reserved to the Electors, the limits on Council, and the independent offices. These notes are not part of the Constitution.

2. Adoption

- Adopted by Fundamental Vote: a majority of votes cast, with a majority of the Electors on the List of Electors casting a ballot (section 17.1). The same participation standard is used in paragraph 42(1)(b) of the First Nations Elections Act for community election codes.
- The vote is conducted by an independent electoral officer, with mail-in ballots and at least 45 days' notice.
- The Constitution does not repeal any law in force. The 2014 Election Regulations and the Membership Code are changed only by their own amendment procedures (section 17.3).

3. Key provisions

- Equality of Members on and off the Reserves (section 3).
- Powers reserved to the Electors (section 5).
- Council acts only by Resolution at duly convened meetings. Members of Council may not vote on their own pay, contracts, or benefits (sections 8.2, 8.3).
- Limits under the Indian Act on land surrender, intoxicant by-laws, section 81 and 83 by-laws, and land allotment (section 9).
- Independent offices that Council may not direct or dismiss (section 10).
- Order of precedence of laws and a public register of laws (sections 12, 13).
- Protected Documents that Council may not suspend or amend (section 14).

4. Legal sources

Source	Provision
Indian Act, s. 2(1)	Definitions of "council of the band" (custom, paragraph (d)), "elector", "member of a band", "child", "common-law partner"
Indian Act, s. 2(3)	Powers of the band exercised with the consent of a majority of the electors; powers of council exercised by a majority of councillors present at a meeting duly convened
Indian Act, ss. 20, 38, 74, 81, 83, 85.1, 86	Land allotment, surrender and designation, elections under the Act, by-laws, money by-laws, intoxicant by-laws, publication of by-laws
First Nations Elections Act, s. 42(1)(b)	Approval by a majority of votes cast in a vote in which a majority of electors participate
Constitution Act, 1982, s. 35	Recognition and affirmation of Aboriginal and Treaty rights